W012541-041426 - California Public Records Request

Message History (4)

On 4/28/2026 3:05:00 PM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

Dear Brian C,

The City received the following records request from you on April 14, 2026.

This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).

Background

The Flock Safety platform maintains a search audit log for each subscribing agency. This log is accessible to agency administrators and is exportable as a CSV file through a built-in "Download CSV" function on each agency's Flock transparency portal. At least 65 California law enforcement agencies currently publish this data on their public transparency pages, including seven San Mateo County agencies: Belmont PD, East Palo Alto PD, Foster City PD, Menlo Park PD, Pacifica PD, San Bruno PD, and South San Francisco PD.

*The published records contain the following fields per search: a unique search identifier, the search date and time, the number of networks queried, and the offense type or reason for the search. User identifiers are redacted to *** by the platform before export. The records do not contain license plate numbers, vehicle descriptions, locations, images, or any data captured by ALPR cameras. Two examples of published search audit exports are attached: Belmont PD (91 search records) and Foster City PD (36 search records), both downloaded from their public Flock transparency portals on April 10, 2026.*

Records Requested

The Flock Safety search audit log for the San Mateo Police Department, exported via the platform's existing "Download CSV" function, for the period from January 1, 2023 through the date of production. This is the same export available under the "Download CSV" link on each agency's Flock transparency portal. I am requesting the existing platform export, not a custom report.

If the Department's Flock transparency portal does not currently display a "Download CSV" or "Search Audit" section, I request records sufficient to show whether SMPD has opted out of or disabled the search audit publication feature in the Flock platform, and any communications with Flock Safety regarding that setting.

Anticipated Objections and Responses

The Department's response to PRA W012320-031126 denied similar records on three grounds. I address each to facilitate prompt processing:

"The California Public Records Act requires disclosure of existing identifiable records only and does not require an agency to create a new record."

This request is for an existing record. The Flock platform maintains the search audit log automatically. It is exportable through a built-in CSV download function — the same function that 65 other California agencies use to publish the data on their transparency portals. Clicking an export button to produce a file the platform already maintains is retrieval, not creation. (See County of Santa Clara v. Superior Court (2009) 170 Cal.App.4th 1301, 1336 ["If the information requested is in an electronic format, in a computer, the fact that the information must be compiled in a manner that is meaningful to the requester, i.e., generated in a report, does not turn the request into one for creation of a new record."])

Gov. Code § 7923.600 (records of investigation).

The search audit log contains administrative metadata: a unique ID, a timestamp, a network count, and an offense category. User identifiers are platform-redacted. The log does not contain license plate numbers, vehicle data, suspect information, case narratives, or any substantive investigative content. It is a usage log for an administrative system, comparable to a door access log or database query log — not an investigative record. The attached examples from Belmont PD and Foster City PD illustrate the format and content of these records.

To the extent any individual field (such as a case number) could be considered investigative, I request that field be redacted rather than the entire record withheld. The Act requires disclosure of reasonably segregable non-exempt portions. (Gov. Code § 7922.525.)

Civil Code § 1798.90.55(b) (ALPR sharing restrictions).

Section 1798.90.55(b) provides: "A public agency shall not sell, share, or transfer ALPR information, except to another public agency." Section 1798.90.5(b) defines "ALPR information" as "information or data collected through the use of an ALPR system." The search audit log is not collected through the use of an ALPR system. It is an administrative record of user activity within the Flock platform — recording who searched, when, and for what category of offense. It contains no plate reads, vehicle images, locations, or camera-captured data.

This distinction is not novel. At least 65 California agencies — including the seven San Mateo County departments listed above — publish this identical data on their public Flock transparency portals. These agencies have concluded, correctly, that search audit metadata is not "ALPR information" subject to § 1798.90.55(b).

If the Department maintains a different legal interpretation, I request that the response identify the specific legal analysis distinguishing SMPD's position from that of its peer agencies.

I have attached examples of the CSVs publicly available for Belmont and Foster City as an example of format, how to redact fields, and a demonstration of data that other local agencies have deemed to be suitable for public sharing.

As you are aware, we are releasing records on a rolling basis to show a good faith and diligent effort to complete your request. The first batch of records has been released and made available on the San Mateo Records Request Portal. You will be receiving more batches of responsive records in the future. Select the link below to view what is currently available.

We will further respond to your request with updates no later than 5/11/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/27/2026 10:01:01 AM, San Mateo Public Records Center wrote:

Subject: California Public Records Request :: W012541-041426
Body:
RE: PUBLIC RECORDS REQUEST of April 14, 2026, **Reference # W012541-041426**

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Background

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Due to the large number of records which are associated with this request, the City will send you records on a rolling production basis. We should have an initial batch of responsive records by the end of this week.

We will further respond to your request with updates no later than Friday, 5/1/26.

If you have any questions, please contact me using the below contact information.

Sincerely,

Jennifer Maravillas
Captain-Support Services
Police
650-522-7633

On 4/14/2026 9:00:41 PM, Brian C wrote:

Request Created on Public Portal

On 4/14/2026 9:00:40 PM, San Mateo Public Records Center wrote:

Thank you for your interest in public records of the City of San Mateo. Your request was received by the City of San Mateo on 4/14/2026 and given the reference number **W012541-041426** for tracking purposes.

Record(s) Requested: **This is a request under the California Public Records Act (Gov. Code § 7920.000 et seq.).**

Background

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The request is being forwarded to appropriate department(s) for processing.

Monitor request progress at the link below. The City will email you when the request is complete. Thank you for using the San Mateo Records Center.

To monitor the progress or update this request please log into the San Mateo Records Center.